IN THE DISTRICT MAGISTRATE COURT HELD AT GBESE, ACCRA BEFORE HER WORSHIP ANNA AKOSUA APPIAAH GOTTFRIED ANAAFI GYASI (MRS.) ON TUESDAY THE 27TH DAY OF MAY, 2025.

SUIT NO: A2/148/2022

SEYNI ABDOU MOCTAR ::: **PLAINTIFF**
(SUING PER HIS LAWFUL ATTORNEY
JAMILA ABDOULAI)

VRS.

HAMSATU ALI ::: **DEFENDANT**

Time: 8:31 am.

Parties: Plaintiff Lawful Attorney absent.

Defendant present.

Legal Representation: Michael Lartey, Esq for Plaintiff absent.

Jane Tachie-Menson, Esq for Defendant holding brief of Yvonne Amegashie present.

JUDGMENT

By a Writ of Summons issued on 21st July, 2022, the jurisdiction of this Court was invoked by the Plaintiff for the following reliefs against the Defendants:

1. An order directed at the defendant to refund to the Plaintiff the amount of six million, one hundred and forty-seven thousand West African CFA Franc (6,147,000.00 FCFA) or it(sic) Cedi equivalent at the prevailing bank rate estimated at GH¢70,000.00
2. Interest accruing thereon from the 5th of February, 2021 till date of final payment.
3. Costs including legal cost perk (sic) at 10% of the amount claimed.
4. Any other orders that the Honourable Court deem (sic) proper.

The Defendant filed her Statement of Defence on 2nd November, 2022 and counterclaimed as follows:

a) A refund of Three Thousand, Three Hundred Cedis (GH¢3,300.00) being extra expenses made by Defendant in keeping Plaintiffs product in the warehouse for three months.

b) Interest on the Three Thousand, Three Hundred Cedis (GH¢3,300.00) at the prevailing market interest rate from March, 2021 till the date of payment of the said money to the Defendant after judgment.

c) Cost, including legal fees of Ten Thousand Cedis (GH¢10,000.00).

THE CASE OF THE PLAINTIFF

The Plaintiff is a Ghanaian, Business Man, and currently in Niger. The Defendant is a Ghanaian, Business Woman and resident in Accra Ghana. The Plaintiff avers that in sometime March, 2021 he needed Tin Tomatoes and discussed the matter with his friends. The Plaintiff avers that the Defendant was introduced to him by a family friend one Haruna and the Defendant told him that she deals in that business and is willing and ready to supply the goods. The Plaintiff further avers that he subsequently sent his attorney to confirm if indeed the Defendant is known in that business which was confirmed. The Plaintiff avers that he after advanced to the Defendant an amount of almost Seventy Thousand Cedis (GH¢ 70,000.00) and the Defendant promised to supply

the tin tomatoes in days' time. The Plaintiff says that he waited for some weeks and the goods were not coming and every effort to get the Defendant to supply the goods or refund the money has proven futile. The Plaintiff says the Defendant is adamant about refusing to refund his money and unless compelled to do so, she will not give him his money hence the prayer.

In Plaintiff's reply to the Defendant's counterclaim he stated as follows:

Plaintiff says that when the Defendant was introduced to him by Haruna, he confirmed the Defendant's identity from his sister and thereafter he requested for 750 cartons of the tin tomatoes at a unit price of seventy cedis (GH¢70.00) from the Defendant. Plaintiff says that Defendant subsequently told him that the price of 750 cartons was Fifty-Two Thousand, Five Hundred and the Plaintiff sent her Five Million West African CFA (5,000,000.00 CFA) equivalent to about GH¢52,750.00 through Hassimiyou. Plaintiff says that when the Defendant received the money she called to inform him that she was working on the supply and the Plaintiff will soon receive his good. Plaintiff says that the Defendant again called him somewhere around May ending that she has more of the tin tomatoes in stock and suggested to the Plaintiff to buy more to reduce transportation cost. Defendant further said that as a Businesswoman she would advise the Plaintiff to buy more of the tomatoes and have them shipped at once. The Plaintiff says that he lauded the business idea of the Defendant and sent her additional Ten Million West African CFA (10,000,000.00 CFA) equivalent to about GH¢104,700.00 through the same Hassimiyou so that the Defendant can supply him an additional 1,450 cartons of the tomatoes of which the Defendant called to acknowledge receipt. The Plaintiff says that he was expecting to hear some good news from the Defendant that his total of 2,200 cartons of tin tomatoes was on the way but nothing like that happened. Plaintiff later got in touch with the Defendant and the Defendant gave him assurances that the goods will soon come and the Defendant sent pictures of goods to calm Plaintiff.

Plaintiff says that days turned to weeks and weeks turned to month and the goods were not moving. After sometime the Defendant stopped picking his calls and Whatsapp messages also stopped ticking blue which means not read. Plaintiff says became curious

and got others involved to follow up on the Defendant only to discover that the Defendant does not have any tomatoes to sell. The Plaintiff says that the total amount he advanced to Defendant was Fifteen Million West African CFA (15,000,000.00 FCFA) equivalent to about GH¢157,450.00 through Hassimiyou for not less than 2.200 cartons of tin tomatoes. Plaintiff says he never received any product from the Defendant, neither did he get the opportunity to even inspect any product to possibly complain of packaging and to even reject same. That all he has received from the Defendant were pictures of tomatoes and nothing more. Plaintiff avers that it was when he got to know that the Defendant had duped him, that was when he started demanding for his money from the Defendant. Plaintiff says that he never asked for the goods to be stored by anyone. He paid the Defendant for product she claims she had to be transported to him. The Plaintiff concludes by saying that the Defendant is not entitled to the said reliefs or any part thereof.

EVIDENCE-IN-CHIEF OF PLAINTIFF'S LAWFUL ATTORNEY

The Plaintiff spoke through his Lawful Attorney Jamilla Abdoulai who happens to be his sister. She more or less repeated the averments of the Plaintiff but included exhibits as evidence of Plaintiff's averments.

EVIDENCE-IN-CHIEF OF PW1

The summary of PW1's case is that he, on behalf of Plaintiff advanced CFA 15,000,000.00 to the Defendant as payment for the tin tomatoes. Following Defendant's inability to supply the tin tomatoes, the Defendant refunded CFA 8,853,000.00 leaving an outstanding balance of CFA 6,147,000.00.

THE CASE OF THE DEFENDANT

Defendant says that the Plaintiff sent an amount of Fifty-Two Thousand, Seven Hundred and Fifty Ghana Cedis (GH¢52,750.00) out of Three hundred and Sixty Thousand Ghana Cedis (GH¢360,000.00) which amounts was to be paid within one week for the supply of six thousand (6,000) cartons of tin tomatoes. Defendant says that, the normal practice is for buyers to make one off payment of the entire amount of money involved in every

transaction and this amount is to be paid he time agreed upon and in the instant case, Plaintiff defaulted in paying the amount involved within a week but rather called Defendant to inform her of his unpreparedness to continue with the planned purchase of the tin tomatoes. Defendant says that since she does not own the products, the owner after waiting fruitlessly for Plaintiff to pay the rest of the money, decided to sell out his product or goods after four months of waiting. Defendant says that Plaintiff paid another Fifty-Four Thousand, Seven Hundred Cedis (GH¢54,700.00) in addition to the Fifty-Two Thousand, Seven Hundred and Fifty Ghana Cedis (GH¢52,750.00) paid some three months earlier. Defendant further avers that, the total amount received from the Plaintiff added up to One Hundred And Seven Thousand, Four Hundred And Fifty Ghana Cedis (GH¢ 107,450.00) and at this point he revealed to the Defendant that he could no longer buy to the tune of the quantity he earlier requested for. Defendant says that at the time, the middlemen between her and her suppliers bolted away with the money which was given to them for the purchase of the product for Defendant but with the assistance of the police, one was arrested and arraigned before court which forced her to refund her part of the money as the second person still is at large. Defendant says that, that notwithstanding, she supplied the products to the Plaintiff but Plaintiff rejected the products on the grounds that the packaging of the product had gone bad and the price too has risen above the Sixty cedis (GH¢60.00) per carton. Plaintiff then started demanding refund of his money at this point which was about four months from the date of first payment. Defendant states that, the supplier then decided to sell his goods to a different buyer but refused to refund the money in the sum of eleven thousand cedis (GH¢11,000) that she paid for storage of the product for four months since it was through no fault of her suppliers. Defendant further states that she subsequently refunded a total of Eighty-nine thousand cedis (GH¢89,000.00) to the Plaintiff leaving a balance of Seven thousand, seven hundred cedis (GH¢ 7,700.00). Defendant says that. she is unable to refund the outstanding balance stated because the eleven thousand cedis (GH¢11,000.00) was paid to the warehouse owner/ supplier for storage which has still not been refunded to her by the warehouse owner since such monies are not refundable especially when he had kept the goods in his warehouse for over four months. Defendant further avers that

she rather has spent more money and has incurred loss of three thousand, three hundred cedis (GHS 3,300.00) as a result of the order made by the Plaintiff which he later withdrew from.

EVIDENCE IN CHIEF OF DEFENDANT

Defendant states that she knows the Lawful Attorney of the Plaintiff as a friend with whom she once lived with in the same area in Accra. She did not deal with the Plaintiffs Lawful Attorney but rather I dealt with the Plaintiff directly. Haruna who is her customer who usually buys from her. Haruna informed her of his need of six thousand cartons of tin tomatoes to be supplied to the Plaintiff. Until this suit she had never seen the Plaintiff personally but we spoke on phone. Defendant arranged for the goods for the said Haruna and expected payment but only received GH¢ 52.750 out of GH¢ 360,000.00 which is the total cost of the goods she had. The goods were deposited at a warehouse pending transportation from Ghana to Niger in the warehouse of a transport company by name ABOU RAZAK TRANSPORT. The goods remained in the warehouse for over three (3) months due to delay in the payment of the cost of goods by Plaintiff. It was after three months that Plaintiff added GH¢54,700.00 making a total of GH¢107,450.00 out of the GH¢360,000.00. Before the payment of the 2nd instalment of GH¢54,700.00, she had returned the goods to the supplier as she had to pay GH¢26,150.00 as storage cost for the three months that the goods were in the warehouse of the transport company. After payment of the 2nd instalment of GH¢54,700.00 by Plaintiff to her, she tried to get the products supplied to the tune of the total amount received from Plaintiff being GH¢107,450.00 but the prices had risen so high due to the delay by Plaintiff. Defendant communicated the increase in the prices of the goods to the Plaintiff, which he immediately refused and started demanding a refund of his money. Defendant tried to supply the goods to the Plaintiff without the cartons due to the increase in price but Plaintiff turned that idea down. Defendant was thus compelled to refund the money to Plaintiff because Plaintiff had at the time brought his Lawful Attorney into the business who was putting so much pressure on Defendant for the

money. Defendant refunded to the Plaintiff a total of GH¢89,000.00 leaving a balance of GH¢18,450.00 to be paid to the Plaintiff. Total expenses in the form of haulage from the Harbour and storage in the warehouse for over three months amounted to GH¢ 26,150.00 which cost Defendant was compelled to pay and which she did pay to the transport company. Deducting Plaintiff's outstanding, GH¢ 18,450.00 from total haulage and warehouse expenses of GH¢26,150.00, Plaintiff now has to pay me GH¢7.700.00 that he rather owes Defendant. Defendant decided not to ask Plaintiff for her GH¢7,700.00 because she knew he also incurred some cost in transferring the money to her but now that he has come to Court, she needs her money.

ISSUES

1. Whether or not there was an initial contract for the sale of 750 cartons and then later a total of 2200 cartons.
2. Whether or not there was an agreement between the parties for the sale of 6000 cartons of tin tomatoes.
3. Whether or not the Defendant owes Plaintiff six million, one hundred and forty-seven thousand West African CFA Franc (6,147,000.00 FCFA) or its Cedi equivalent at the prevailing bank rate estimated at GH¢70,000.00
4. Whether or not Plaintiff owes the Defendant GH¢3,300.00

THE LAW

The Burden and Persuasion of Proof

Evidence Act 1975 (N.R.C.D. 323)

In examining the case put forward by the parties, the court must be circumspect and deal with facts as well as the evidence adduced and most importantly the law. The law that this court will be instructed by are as follows:

Section 10

(1) For the purposes of this Act, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the Court.

(b) to establish the existence or non-existence of a fact by a preponderance of the probabilities or by proof beyond a reasonable doubt.

Section 11

(1) For the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party.

(4) In other circumstances the burden of producing evidence requires a party to produce sufficient evidence which on the totality of the evidence, leads a reasonable mind to conclude that the existence of the fact was more probable than its non-existence.

Section 12

1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.

(2) "Preponderance of the probabilities" means that degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence.

Section 17

Except as otherwise provided by law,

(a) the burden of producing evidence of a particular fact is on the party against whom a finding on that fact would be required in the absence of further proof;

(b) the burden of producing evidence of a particular fact is initially on the party with the burden of persuasion as to that fact.

In the case of ***Mojolagbe v. Larbi and Others (1959) GLR 190***, which found favour in the case of Ackah v Pergah Transport Ltd supra the court held as follows:

"Proof, in law, is the establishment of fact by proper legal means; in other words, the establishment of an averment by admissible evidence. Where a party makes an averment, and his averment is denied, he is unlikely to be held by the Court to have sufficiently proved that averment by his merely going into the witness-box, and repeating the averment on oath, if he does not adduce that corroborative evidence which (if his averment be true) is certain to exist. … "Proof in law is the establishment of facts by proper legal means. ***Where a party makes an averment capable of proof in some positive way, e.g. by producing documents, description of things, reference to other facts, instances, or circumstances, and his averment is denied, he does not prove it by merely going into the witness-box and repeating that averment on oath, or having it repeated on oath by his witness.*** *He proves it by producing other evidence of facts and circumstances, from which the Court can be satisfied that what he avers is true." …Therefore, the role of a trial judge "in a civil matter is to determine from the evidence available which of the parties adduced credible and sufficient evidence to tilt in his favour the balance of probabilities on an issue."* **(my emphasis)**

In applying the above statute and case, in ***Ackah v. Pergah Transport Ltd (2010) SCGLR 728 @ 736*** the Supreme Court held:

"It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence) without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more reasonable than its non-existence."

ANALYSIS

In analysing the issues above I have also considered the submissions made by Counsel for each party in their respective addresses.

Issues 1 and 2

Issues 1 and 2 will be dealt with together as they resolve each other. From the facts of the case, it is not in doubt that the parties had a contractual relationship. As such, there is no need to discuss the elements of a contract as both parties are ad idem on the agreement. Thus, it is a fact that the Plaintiff sent money to the Defendant so that Defendant who is alleged to be in the business of selling tin tomatoes will export same to him. What is in dispute is how many cartons were agreed on for the sale and how much money was advanced. Both parties agree that an initial payment of GH¢52,750.00 was advanced from Plaintiff to Defendant. The dispute here with this amount is determining what the said amount was for. According to Plaintiff that was the amount to be paid for the tin tomatoes order of 750 cartons. Defendant on the other hand claims that it was only part payment and not full payment for the total of 6000 cartons. The question therefore is on who lies the burden of proof. Clearly, following sections 10, 11 and 17 of NRCD 323 supra and the cases of ***Mojolagbe v. Larbi and Others*** and ***Ackah v. Pergah Transport Ltd*** the burden lies on the one making the positive assertion and, in this case, both parties. The Plaintiff claims that he made an order for 750 cartons whilst the Defendant claims it was for 6000 cartons. The Plaintiff therefore has to prove that indeed the GH¢52,750.00 was full payment for a consignment and Defendant has to prove that it was 6000 cartons that was agreed and therefore the said amount was part payment. To prove his claim, Plaintiff's lawful attorney attached some photos showing the Defendant and the said tin tomatoes being as it were "ready to go" following his initial payment. Under cross examination of Plaintiff's Lawful Attorney, the following ensued:

Q: Exactly how many cartons of tin tomatoes did the Plaintiff order at the 1st instance?

A: 750 cartons.

Q: How much were those 750 cartons worth in cedis at the time the order was made?

A: GH¢52,000.00.

Q: What was the price in cedis of one carton of tin tomatoes at the time?

A: *GH¢70.00.*

Q: *Are you aware that the Plaintiff actually ordered 6,000 cartons of tin tomatoes from the Defendant?*

A: *That is not so. The Defendant suggested that he order 6,000 cartons but at the time Plaintiff said he could not afford that quantity.*

Q: *Did the suggestion by the Defendant come before or after the initial GH¢52,000.00 was sent?*

A: *The Plaintiff sent the GH¢52,000.00 before the Defendant suggested the 6,000 cartons.*

Q: *After sending the GH¢52,000.00 the Plaintiff sent a further sum of GH¢54,000.00, is that correct?*

A: *No however he later sent GH¢104,700.00.*

Q: *How long after the 1st payment was made was the 2nd payment made?*

A: *Two (2) months.*

Q: *Within those two (2) months, the Plaintiff had received no tin tomatoes from the Defendant, is that so?*

A: *That is so.*

Q: *Do you know the reason for that?*

A: *Yes, the Defendant said the goods have not yet arrived.*

Q: *Did she tell you exactly where her goods were supposed to be arriving from?*

A: *No.*

Q: *Because you already knew the Defendant, you knew the nature of her business, is that not true?*

A: *No.*

Q: *I put it to you that the Defendant never told you that her goods have not arrived?*

A: *It was the Defendant herself who told me that her goods have not arrived.*

Q: *Is it the case then that despite the Plaintiff not having received any goods for a period of two (2) months, he still went ahead and sent more money to the Defendant?*

A: *Yes because she deceived us.*

Under cross examination of the PW1 the following ensued:

Q: *At the time you were introduced to the Defendant, it was made clear to you that the Plaintiff have already sent money to the Defendant through Haruna, is that correct?*

A: *Yes.*

Q: *The Plaintiff sent money to the Defendant through you on one occasion only, is that correct?*

A: *Twice. The 1st one was CFA 5 million, on that day the said Haruna and the Defendant came to collect an amount of GH¢52,750.00 from me. The 2nd one was CFA 10 million, on that day I requested CFA 10 million from the Plaintiff and I told him that if he can give CFA 10 million to my brother at Niger and he will come and collect it in Ghana which he agreed. The said CFA 10 million was equivalent to GH¢104,700.00. On that same day the Defendant came to collect the said GH¢104,700.00 alone and we were 3 in the office and I called the Plaintiff who asked me to give the said GH¢104,700.00 to the Defendant which I did. I asked the Plaintiff if he would like to speak to the Defendant before giving her the money and he spoke with her and I gave her the money.*

Q: *It was indeed you who requested the CFA 10 million from Plaintiff for your own purposes?*

A: *Yes. The Plaintiff had already informed me that he would need to get some goods up to CFA 35 million so he sent the 1st CFA 5 million and then I requested for the CFA 10 million to be given to my brother in Niger and I asked him if he could afford it which he said he could. I paid the cedi equivalent.*

Under cross examination of the Defendant the following ensued:

Q: The first time you went to collect the money from PW1, did you go with Haruna?

A: Yes.

Q: How much money did you collect the first time?

A: Haruna collected GH¢52,750.00 and gave it to me.

Q: Do you know PW1 very well?

A: Yes.

Q: Can you identify him?

A: Yes.

Q: Can you point him out in this Honourable Court?

A: Yes, he is sitting on the first seat.

Q: Have you had any business with PW1 apart from the ones involving Plaintiff?

A: Yes.

Q: Has PW1 ever given you an amount of money less than what you expect in any of your business before?

A: No.

Q: You said the second payment from Plaintiff, PW1 gave you GH¢54,700.00 instead of GH¢104,700.00, is that correct?

A: Yes.

Q: So you will agree with me based on your answer that PW1 has given you an amount less than what you were expecting?

A: I was not expecting to receive any money that day so I assumed that what I received was what I was to be given.

Q: PW1 testified in this very Court, having sworn on the Quran that he gave you GH¢104,700.00 for the second payment, do you disagree with me?

A: I disagree. PW1 asked me to come to his office the following day. So on that day PW1 gave me GH¢54,700.00 stating that that is the equivalent of what he needs in Niger and PW1 stated he was the one giving me the money and that it was unfair for Plaintiff to order goods from me when he knew he could not pay for them. He further stated that Plaintiff asked for help from PW1 to give him CFA 35 million but he was unable to give it to him.

Q: Would you agree with me that if PW1 says he was given CFA 10 million equivalent of GH¢104,700.00 to be given to you and he only gave you GH¢54,700.00 then there is a balance of GH¢50,000.00 unaccounted for?

A: I agree, however I have received money from PW1 on other occasions without any shortage. I spoke with PW1 when the case started to remind me of the amount he told me he did not remember but what Plaintiff has written is what he has told me.

Q: So if PW1 came to this Court to tell the Court that he had been given GH¢104,700.00 and you said he gave you only GH¢54,700.00 then the GH¢50,000.00 balance must be with him, is that correct?

A: I agree.

When asked about the price of tin tomatoes she said as follows:

Q: Still on the 'Exhibit B series' dated 19th July, can you tell the Court the costs of that tomatoes?

A: I cannot remember.

From the record, the Defendant claims that the unit price of each tin of tin tomatoes is GH¢60.00 whilst Plaintiff claims it is GH¢70.00. The total amount of 750 multiplied by GH¢70.00 will be GH¢ 52,500 whilst if calculated at GH¢60.00 will amount to GH¢45,000.00. Logic therefore prevailing will presume that the intention of the parties was for a sale of 750 cartons at the cost of GH¢70.00 per tin of tin tomatoes. Again, following this same logic at the same unit price multiplied by 1450 cartons, the amount will be GH¢101,500.00 and at Defendant's price GH¢ 87,000.00. PW1 states that he advanced 10 million CFA to the Defendant in exchange for GH¢104,700.00. The evidence

of Plaintiff from his attorney and PW1 as well as the photos when put together seem cogent that indeed there was an agreed 1st consignment of 750 cartons of tin tomatoes and Plaintiff was later persuaded to buy more tin tomatoes for a total of 2200 cartons. However, though Plaintiff did not adduce any documentary evidence proving that he indeed advanced a further GH¢104,700.00, the evidence of PW1 who to my mind has been consistent shows that he received and gave GH¢ 104,700.00 to the Defendant. Defendant also admitted on oath that she has never had any shortage of money from PW1 in all her transactions with him. Doing the math, the effect is that a total of GH¢157,450.00 was paid to Defendant. The onus was on Defendant to prove that 6000 cartons was the agreed number of tin tomatoes to be purchased. Apart from her word, there is no other evidence nor witness on record to show that there was indeed 6000 cartons of tin tomatoes agreed upon as the quantity to be purchased. I thus find it more probable than not that the agreed amount of tin tomatoes to be exported to Plaintiff was 2200 cartons and not 6000 cartons.

Issues 3 and 4

Flowing from the resolution of the 1st and 2nd issues, the issues outstanding to be determined are whether or not Defendant owes Plaintiff and vice versa. The Plaintiff herein claims that Defendant owes him GH¢ 70,000.00. From the record, PW1 testifies that the Defendant refunded GH¢ 89,000.00 which corroborates Defendant's testimony. Again, Plaintiff is not claiming the entire GH¢157,450.00 which was the total amount for the 2200 cartons of tin tomatoes. Plaintiff has also not denied receipt of GH¢89,000.00. Thus, the question is whether Plaintiff is entitled to the GH¢70,000.00. According to Defendant, she stored the tin tomatoes in a warehouse which caused her to incur cost. Under cross examination of the Defendant, the following ensued:

Q: Listen to your Lawyer's statement, there is nothing like tried over there, I am putting it to you?

A: That is what I have told the Court that the word tried did not appear but all that I have said is true. I have earlier told the Court that Plaintiff made me keep the goods for three (3) months to wait for him. Because the goods were kept for three (3) months some of the

cartons were torn and that is why the Plaintiff said because of the torn cartons he will not accept the goods.

Q: Can you tell the Court the name of the warehouse you kept the products?

A: I don't remember the exact name but I know the owners name to be Abdul Razak which I have tendered the receipt to that effect.

Q: I want you to look at your Witness Statement and show me the receipt that you tendered?

A: I remember very well that I attached receipt to the Witness Statement, my previous Lawyer can bear witness to that.

Q: When you took the items to the warehouse to be kept on behalf of the Plaintiff, did you make Haruna aware?

A: Yes, he was aware as well as Plaintiff's witness.

Q: When you say Plaintiff's witness did you mean Plaintiff's Lawful Attorney?

A: No, PW1.

When pressed further on this issue on the next adjourned date the following ensued:

Q: Take a look at the 2nd picture in the container, I am putting it to you that that the label and design of La Vonce is clear for one to identify?

A: If I look at the picture I cannot see it.

Q: I am putting it to you that that the picture taken with your face showing is at Tema with La Vonce tin tomatoes shop and not the warehouse you claim you kept the tin tomatoes you bought?

A: I never said this is the warehouse.

Q: Can you tell the Court the name of the warehouse where you bought the tomatoes for the Plaintiff?

A: Abdul Razak Transport and something else I do not remember.

I must reiterate that it is not enough to repeat the averments made in the pleadings on oath in the witness box but must lead cogent evidence especially when the said assertion has been denied. Defendant did not attach any documentary evidence to show exactly how much cost has been incurred or if indeed the goods were even stored at the warehouse at all. The Defendant also did not call any witnesses from the said warehouse to aid her case. As such I find it more probable than not that the goods were not stored in any warehouse and therefore no costs were incurred.

CONCLUSION

I find as a fact therefore that Plaintiff's version of events is more probable to have occurred than that of the Defendant. The agreed quantity of tin tomatoes was 2200 and the amount advanced was indeed GH¢157,450.00. I thus hold that considering that the Defendant has already refunded GH¢89,000.00 then the plaintiff is entitled to a further refund of GH¢70,000.00. The Defendant failed to prove that the Plaintiff owes her GH¢3,300.00 and is therefore not entitled to her claim.

FINAL ORDERS

a. The Defendant is ordered to pay GH¢70,000.00 to the Plaintiff with interest to be calculated at the prevailing commercial bank rate from 27th May, 2025 till final date of payment.

b. Costs of GH¢15,000.00 awarded in favor of Plaintiff.

(SGD.)

H/W. ANNA AKOSUA APPIAAH GOTTFRIED ANAAFI GYASI (MRS.)

(DISTRICT MAGISTRATE)